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Case Name: The Fazzio Family Trust

Case No: 24PR198048

Petitioners Katherine Rodda and Anthony V. Fazzio (“Petitioners”) are the children of Anthony J. Fazzio (“Decedent”). Prior to his death, Decedent married Fidelis E. Campion a.k.a. Fidelis De Cruz (“Respondent”) and, in 2019, he amended the Fazzio Family Trust to disinherit Petitioners and leave the bulk of the assets to Respondent. Decedent also recorded a deed transferring his home in Campbell to Respondent. Petitioners initiated this action on September 9, 2024 by filing their Petition to Invalidate Trust Instruments; to Invalidate Deed; Financial Elder Abuse; Disinheritance; Breach of Fiduciary Duty.

Currently before the court is Petitioners’ motion to compel third party Henry Decruz (“Decruz”), Respondent’s brother, to attend his deposition. The motion is unopposed. The motion initially was scheduled for hearing on May 18, 2026 but the court (Hon. Amber Rosen) continued the hearing so that Petitioners could serve Decruz with the motion. The court informed Petitioners that the hearing would be continued and ordered them to properly serve Decruz prior to the continued hearing date.

At the hearing on the motion, Petitioners’ counsel represented that Decruz had not been served with the motion and was evading service of same. Counsel represented that Petitioners would be filing an ex parte request to serve Decruz via alternate means. No such ex parte application has been filed. On July 8, 2026, Petitioners again filed a notice of motion with an attached proof of service that *does not* show service on Decruz.

Code of Civil Procedure section 1987.1, upon which Petitioners rely, has been interpreted to impose the notice and hearing requirements generally applicable to motions. (*Titmas v. Superior Court* (2001) 87 Cal.App.4th 738, 743, quoting *St. Paul Fire & Marine Ins. Co. v. Superior Court* (1984) 156 Cal. App. 3d 82, 86.) Code of Civil Procedure 1005, subdivision (b) requires the moving party to serve “all moving and supporting papers” at least 16 court days before the hearing. The moving party must also file a proof of service five court days before the hearing. (Cal. Rules of Court, rule 3.1300(c).) Petitioners have not established that they have served Decruz with the motion.

Given that the court has already granted a continuance to allow for service of the motion on Decruz, the motion is DENIED.

Calendar line 2

Case Name: Conservatorship of Gilbert Marosi

Case No.: 25PR201603

I. Introduction

This case arises from Rich Marosi’s (“Petitioner”) petition for appointment as conservator of the estate of his father Gilbert Marosi (“Objector”). On April 24, 2026, Petitioner filed an amended petition seeking a conservatorship of both the person and the estate of Objector. Objector, who is represented by appointed counsel, opposes the conservatorship.

Currently before the court is Petitioner’s motion for an independent mental and neuropsychological examination of Objector under Code of Civil Procedure section 2032.320.¹ Objector filed an opposition and Petitioner filed a reply.

II. Discussion

A. Legal Background

As explained in *Conservatorship of G.H.* (2014) 227 Cal.App.4th 1435, 1440-1441, the Civil Discovery Act provides for a mental examination of a party: “Section 2032.020 provides that any party ‘may obtain discovery ... by means of a physical or mental examination ... in any action in which the mental or physical condition ... is in controversy in the action.’ (§ 2032.020, subd. (a).) Section 2032.310, subdivision (a) specifies that ‘the party shall obtain leave of court’ to obtain discovery by means of a mental examination. Section 2032.310, subdivision (b) provides that a ‘motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.’ [¶] Section 2032.320, subdivision (a) states: ‘The court shall grant a motion for a physical or mental examination under Section 2032.310 only for good cause shown.’ Section 2032.320, subdivision (d) provides: ‘An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.’” (*Conservatorship of G.H.* (2014) 227 Cal.App.4th 1435, 1440-1441.) “The foregoing statutory provisions establish that a party must submit to mental examination only upon court order.” (*Id.* at p. 1441.)

If the court grants the motion, the order must specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination. (§ 2032.320, subd. (d).)

B. Merits of the Motion

Petitioner asserts that Objector’s mental functioning is central to the issue raised in the petition, namely, whether a conservator should be appointed because Objector cannot manage his own affairs. The petition requires a capacity declaration (Judicial Council form GC-335) and Petitioner contends that an examination of Objector is required to complete that form. He seeks a mental and neuropsychological examination of Objector by Dr. Eric Freitag, Psy.D. FACPN, a psychologist and board-certified neuropsychologist. Petitioner has provided Dr. Freitag’s curriculum vitae, which establishes that Dr. Freitag meets the requirement that the

¹ All further undesignated statutory references are to the Code of Civil Procedure.